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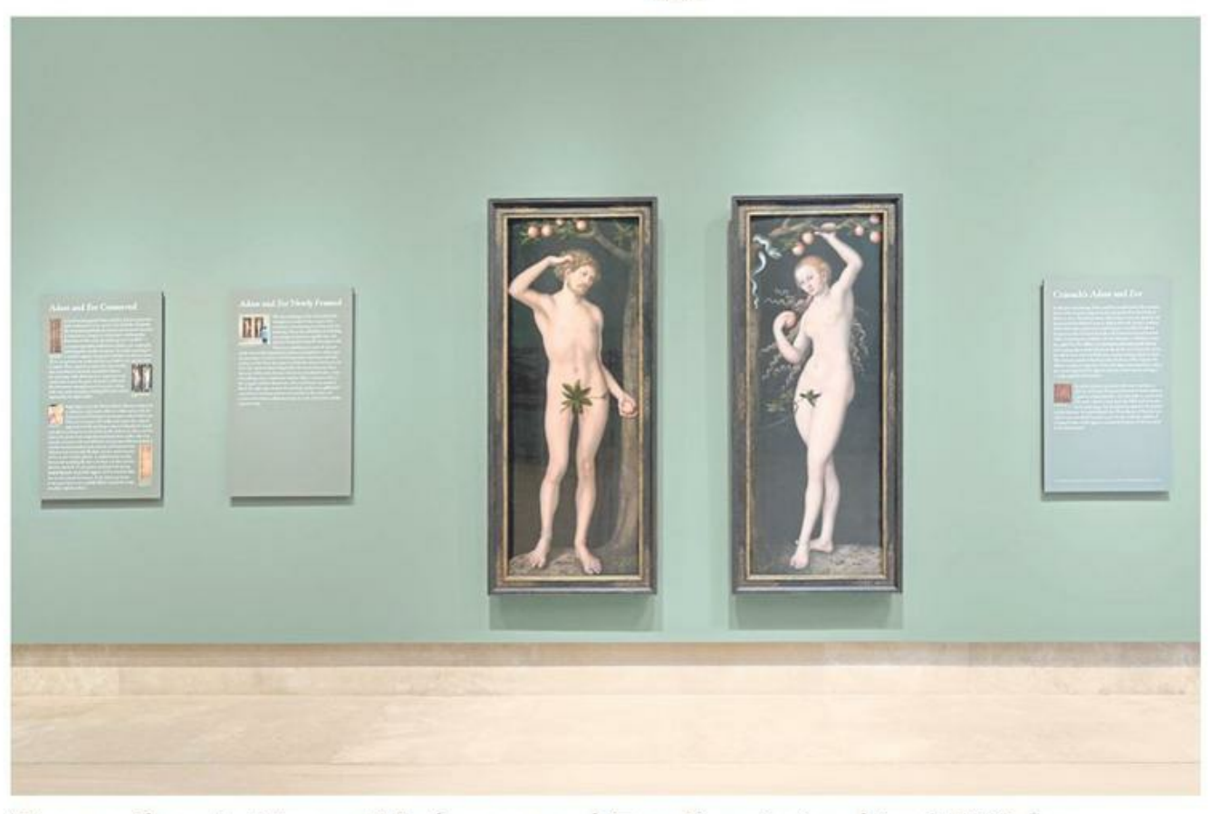
Laws trigger a fresh legal fight over Nazi-looted art in Los Angeles

By Deepa Bharath
THE ASSOCIATED PRESS



Two oil paintings, "Adam and Eve," painted in 1530 by Lucas Cranach the Elder, on display in the Norton Simon Museum in Pasadena. **GERARD VUILLEUMIER — NORTON SIMON ART FOUNDATION**

LOS ANGELES — Jewish heirs of Holocaust victims and their representatives have filed two lawsuits in California staking their claims to Nazi-looted paintings that still hang on the walls of prominent museums in Los Angeles and Auschwitz.

This pair of lawsuits are the first to be filed after the recent passage of laws by California and Congress, which strengthen U.S.-based claims to artwork that were forcibly taken from Jewish families during World War II.

One lawsuit was filed in Los Angeles Superior Court on Monday by the Jewish Federation of Greater Los Angeles and its board chair Daniel Gryczman against Norton Simon Museum in Pasadena for the return of "Adam and Eve." These are two life-size oil-on-panel masterpieces created by Lucas Carnach the Elder in 1530.

The other lawsuit was filed in federal court in Los Angeles the same day by the daughters of the late Dinah Gottliebova Babbitt, a Holocaust survivor and California-based animator who was held in Auschwitz. It demanded the return of watercolors of fellow prisoners that the artist was forced to paint for Josef Mengele, a Nazi physician who had earned the nickname the "Angel of Death."

Spokespersons for both museums say the museums legally hold titles to the works, and intend to continue displaying them to the public. The lawsuits don't specify the monetary value of the paintings.

ARTWORKS PIT JEWISH FAMILIES AGAINST MUSEUMS

The issue of Nazi-looted art is an emotional, legally and ethically charged topic that pits Jewish families that have suffered inter-generational trauma against museums that say they are trying to preserve a painful, yet important, chapter of history. Between 1933 and 1945, the Nazi regime orchestrated the largest art theft in world history, seizing over 600,000 works of art across Europe from Jewish families, collectors and museums. Decades later, many of these masterpieces reside in prominent museums around the world, making the push for their recovery more complex than a simple property dispute.

Rabbi Noah Farkas is president and CEO of the Jewish Federation of Los Angeles, the organization to which Marei von Saher, sole heir of Dutch Jewish art dealer Jacques Goudstikker, has signed over her rights. The paintings were seized from Goudstikker's collection by Hermann Goring, Adolf Hitler's second-in-command and changed a number of hands before being sold in the 1960s to the Pasadena Museum of Modern Art, which was renamed Norton Simon Museum in honor of its benefactor.

Farkas said the federation plans to use most of the net proceeds from the recovered art to provide much-needed help to the about 2,500 Holocaust survivors living in the Los Angeles area.

"These are incredibly beautiful European masterpieces stolen from a Jewish family to enrich the Nazi party and fund the war and death machine against the people," he said. "It's our honor to take on this role on behalf of the community and use most of the proceeds to help these elderly survivors live out the last years of their lives in dignity, comfort and peace — something their family members were denied during the Holocaust."

Marei von Saher, in a statement, said she is grateful to the Jewish organization for taking up her family's cause.

"This effort represents a meaningful step toward justice for Holocaust survivors and victims of Nazi era atrocities," she said.

California Assemblyman Jesse Gabriel, D-Woodland Hills, wrote Assembly Bill 2867, signed by Gov. Gavin Newsom in September 2024, which requires that the state law must apply in lawsuits brought by California residents or their heirs to recover art seized during the Holocaust or during other acts of persecution. Gabriel, who co-chairs the California Legislative Jewish Caucus, introduced the legislation in response to a federal court ruling, which allowed the state-owned Thyssen-Bornemisza National Museum in Madrid to keep a multi-million-dollar Camille Pissarro impressionist masterpiece.

MOSS LANDING

Battery storage fire raises new fears

By Molly Peterson
CALMATTERS

The burned remains of the Moss Landing Power Plant battery energy storage facility caught fire again Friday morning, prompting Monterey County officials to issue a shelter in place order — less than two years after it became one of the largest battery storage facility fires in history.

Workers for Vistra, the plant's Texas-based operator, noticed a flare-up early Friday morning against the wall of a building that burned in the initial January 2025 fire. The cause: roughly 1,500 inaccessible battery modules, still charged, spontaneously ignited, said Chief Jess Cortez with the North County Fire Protection District.

"They're in the smoldering stage right now," Cortez said at a briefing Friday afternoon, adding that at that point there was no active fire. "The incident is very dynamic. There could be possible flare-ups."

Local authorities lifted the order to shelter in place later Friday afternoon. Still, the flare-up reignites fears about battery storage facilities — even as California comes to increasingly rely on them. The state now has "the nation's largest battery energy storage fleet," the California Energy Commission announced in August.

"If we had only known the worst-case scenarios of how not to build batteries, we wouldn't have built Moss Landing," said Dustin Mulvaney, a professor at San Jose State University in the school of planning, policy and environmental studies. "Because it keeps coming back to haunt us."

The incident also sharpens the tension between Gov. Gavin Newsom's push to shortcut permitting for energy and other projects, and the communities hosting these facilities.

FIRE, REKINDLED

In January 2025, residents from across the Monterey Bay area watched large plumes of smoke and ash spewing from Vistra's 300-megawatt battery energy storage facility at the Moss Landing Power Plant in Monterey County.

It was the facility's fourth safety incident, the third on the Vistra property, since 2019, according to a letter Assemblymember Dawn Addis, a San Luis Obispo Democrat who represents Moss Landing and parts of Santa Cruz County, sent state regulators last year. The fire continued for days before crews could control it, then rekindled briefly a month later.

Newsom called for a state investigation. The California Public Utilities Commission began with a site visit that month.

Nearly two years later, that investigation is ongoing, with a root cause analysis underway in coordination with Vistra and an independent consultant, said Terrie Prosper, a spokesperson with the Public Utilities Commission.

Monterey County Supervisor Glenn Church expressed frustration about the delay.

"Why it takes a year and a half to come up with an answer when everything is just about near the end of being cleaned up, I don't know," he said.

Before the state approves any more of these facilities, he said, "it's a good idea to know what's causing these fires."

SAFETY RULES, TOO LATE

Unlike facilities built more recently, the Moss Landing site was built in an enclosed, aging building with older battery technologies crammed closely together — allowing fires to spread quickly, Mulvaney said.

Denise Grab, the Clean Energy Law & Leadership project director for the Emmett Institute on Climate Change and the Environment, agreed: The site is "one of the earlier battery storage facilities in the state and in the country, even. And the design is not up to par with current safety designs."

Battery plants still carry less overfall harm than fossil fuel plants, Grab added.

"There are risks from other types of energy generation as well, particularly fossil fuel," Grab said. "Asthma, premature death, heart attacks, lung disease from fossil fuel plants is significant, and (battery plants pose) a different kind of risk."

California passed a series of safety laws both before and after the January 2025 fire, including several laws from state Sen. John Laird, a Santa Cruz Democrat, aimed at better planning for — and preventing — fires.

A 2022 law by then-Sen. Ben Hueso required the California Public Utilities Commission to set new standards for battery storage facilities and boost oversight of their emergency plans. But the commission didn't bring its proposal for implementing Hueso's law to a vote until after last year's Vistra fire.

"We should have never built Moss Landing the way we did," Mulvaney said. "We were too late with coming up with the standards and certifications, which make batteries much safer today."

ENVIRONMENTAL HEALTH CONTROVERSY

Vistra says that the cause of last year's fire is still unknown. The energy company commissioned a study finding that chemical concentrations in nearby soil or water posed no risk to humans or the environment.

"As a result, no further human health or ecological risk evaluation related to the (Moss Landing fire) event is warranted," the report read.

But scientists' findings and resident accounts suggest otherwise. As the fire blazed for days in January 2025, residents reported wheezing, coughing, headaches and eye irritation.

Researchers presented additional findings at a symposium last month, including evidence from one UC Santa Cruz researcher of elevated exposure to battery-related materials in hair samples.

Scientists with the San Jose State University's Moss Landing Marine Laboratories have found high levels of nickel, manganese and cobalt in soil around the facility. Ivano Aiello, the scientist who led the study, said Vistra's recent report examined potential contaminants months after the fire was contained.

The long-term health impacts of potential exposure remain unclear, and researchers continue studying the incident.

Richard Stedman, an air pollution control officer with the Monterey Bay Air Resources District, said regulators placed four monitors at the fence line around the Vistra facility, and two more nearby: None detected unhealthy levels of particulate matter as of Friday's briefing.

Brian Roeder, founder of the community group Never Again Moss Landing, said the public's trust in regulators and politicians who are meant to protect them continues to erode.

"We've had 20 months to prepare for this," he said. "Here we are again, right back where we were before, knowing this could happen."

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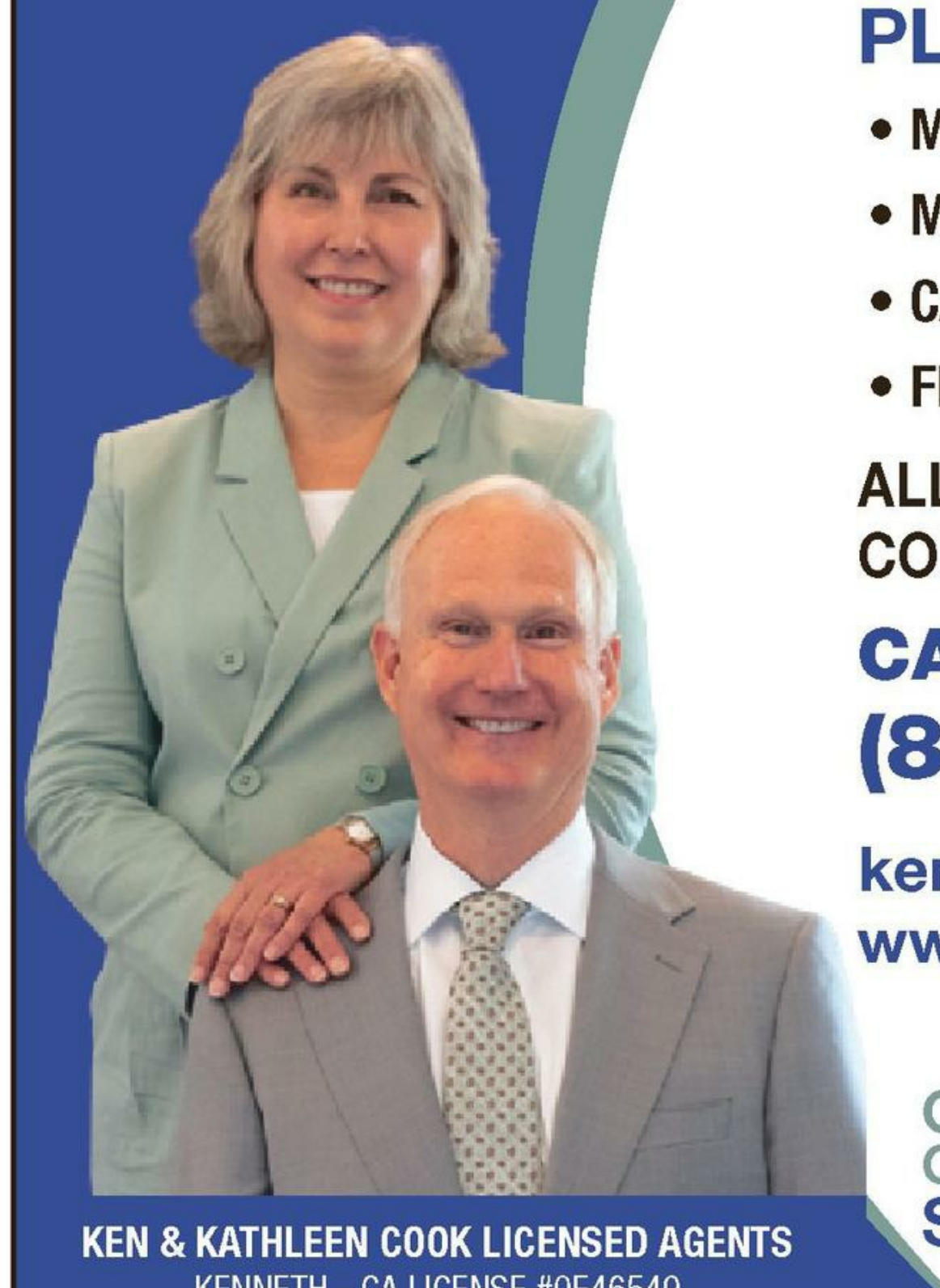

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